

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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ANGEL RIVERA,

Plaintiff,

-against-

THE CITY OF NEW YORK, UNDER COVER
("UC") POLICE OFFICER # 348, Individually and in
his/her Official Capacity, DET. JOSEPH TORRES,
Shield No. 2922, Individually and in his Official
Capacity, P.O. RAFAEL PIMENTEL, Shield No.
28897, Individually and in his Official Capacity, P.O.
BRENDAN MALLON, Shield No. 13371, Individually
and in his Official Capacity, and POLICE OFFICERS
"JOHN DOE" #1-10, Individually and in their Official
Capacity (the name John Doe being fictitious, as the
true names are presently unknown),

Defendants.

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To the above-named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of
your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance
on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of
service, where service is made by delivery upon you personally within the state, or, within 30 days
after completion of service where service is made in any other manner. In case of your failure to
appear or answer, judgment will be taken against you by default for the relief demanded in the
Complaint.

Dated: NEW YORK, NEW YORK
March 4, 2021

COHEN & FITCH LLP
Attorneys for Plaintiff
110 E. 59th St, Suite 3200
New York, N.Y. 10022
(212) 374-9115

TO:

JAMES E. JOHNSON
Corporation Counsel of the City of New York
100 Church Street
New York, New York 10007

SUMMONS

Jury Trial Demanded

Plaintiff designates Bronx County
as the place of trial.

The basis of venue is:
CPLR § 504(3)

UNDER COVER ("UC") POLICE OFFICER # 348
c/o NYPD Headquarters
1 Police Plaza, Room 110C
New York, NY 10038

DET. JOSEPH TORRES, Shield No. 2922
c/o NYPD Headquarters
1 Police Plaza, Room 110C
New York, NY 10038

P.O. RAFAEL PIMENTEL, Shield No. 28897
c/o NYPD Headquarters
1 Police Plaza, Room 110C
New York, NY 10038

P.O. BRENDAN MALLON, Shield No. 13371
c/o NYPD Headquarters
1 Police Plaza, Room 110C
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X

ANGEL RIVERA,

Plaintiff,

-against-

VERIFIED COMPLAINT**Jury Trial Demanded****BASIS FOR VENUE:****CPLR § 504(3)**

THE CITY OF NEW YORK, UNDERCOVER (“UC”) POLICE OFFICER # 348, Individually and in his/her Official Capacity, DET. JOSEPH TORRES, Shield No. 2922, Individually and in his Official Capacity, P.O. RAFAEL PIMENTEL, Shield No. 28897, Individually and in his Official Capacity, P.O. BRENDAN MALLON, Shield No. 13371, Individually and in his Official Capacity, and POLICE OFFICERS “JOHN DOE” #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Defendants.

-----X

Plaintiff ANGEL RIVERA by his attorneys, COHEN & FITCH LLP, complaining of the defendants, respectfully allege as follows:

FACTS

1. Plaintiff ANGEL RIVERA is a Hispanic male and has been at all relevant times a resident of Bronx County in the State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State

Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned the individually named defendants, UNDERCOVER (“UC”) POLICE OFFICER # 348, DET. JOSEPH TORRES, Shield No. 2922, P.O. RAFAEL PIMENTEL, Shield No. 28897, P.O. BRENDAN MALLON, Shield No. 13371, and POLICE OFFICERS “JOHN DOE” #1-10 were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages, and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

The Incident

8. On or about December 2, 2017, in the County of Bronx, City, and State of New York, plaintiff ANGEL RIVERA was lawfully present in the vicinity of E. 198th St. and Creston Ave., Bronx, NY.

9. At approximately 2:30 p.m., on the above-mentioned date and in the vicinity of the above-mentioned location, an unmarked NYPD vehicle pulled up next to plaintiff and several NYPD officers – namely, defendants UC # 348, TORRES, PIMENTEL, MALLON, and/or POLICE OFFICERS “JOHN DOE” #1-10 – exited said vehicle.

10. Immediately thereafter, defendants UC # 348, TORRES, PIMENTEL, MALLON, and/or POLICE OFFICERS “JOHN DOE” #1-10 accosted plaintiff as he was crossing the street, searched his person and effects, and then placed him under arrest by handcuffing his arms tightly behind his back. No contraband was recovered from plaintiff as a result of this search, nor did plaintiff have custody or control over any contraband.

11. At no time on December 2, 2017, did defendants UC # 348, TORRES, PIMENTEL, MALLON, and/or POLICE OFFICERS “JOHN DOE” #1-10 possess probable cause and/or reasonable suspicion to search plaintiff’s person or effects nor did they obtain voluntary consent from him to do so.

12. At no time on December 2, 2017, did defendants UC # 348, TORRES, PIMENTEL, MALLON, and/or POLICE OFFICERS “JOHN DOE” #1-10 possess information that would lead a reasonable officer to believe probable cause and/or reasonable suspicion existed to search plaintiff’s persons or effects.

13. At no time on December 2, 2017, did defendants UC # 348, TORRES, PIMENTEL, MALLON, and/or POLICE OFFICERS “JOHN DOE” #1-10 possess probable cause to arrest plaintiff.

14. At no time on December 2, 2017, did defendants UC # 348, TORRES, PIMENTEL, MALLON, and/or POLICE OFFICERS “JOHN DOE” #1-10 possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

15. At no time on December 2, 2017, did plaintiff possess any contraband and/or controlled substances, nor did plaintiff have custody and control over any contraband and/or controlled substances, nor did plaintiff commit any crimes or offenses or behave unlawfully in any way, nor was any evidence or contraband found on his person or in his effects.

16. Subsequently, defendants UC # 348, TORRES, PIMENTEL, MALLON, and/or POLICE OFFICERS "JOHN DOE" #1-10 placed plaintiff in an NYPD vehicle and drove him several blocks away from the location where he was arrested, and then transferred him into a different NYPD vehicle.

17. Thereafter, plaintiff was transported to a nearby police precinct where he was searched again, fingerprinted, photographed, questioned, confined against his will in a holding cell for several hours, and charged with crimes by defendants UC # 348, TORRES, PIMENTEL, MALLON, and/or POLICE OFFICERS "JOHN DOE" #1-10. Specifically, plaintiff was charged with Criminal Sale of a Controlled Substance and Criminal Possession of a Controlled Substance. However, at no time did plaintiff commit either of the aforementioned crimes and/or offenses nor possess any contraband or have custody or control over same, nor did he behave unlawfully in any way.

18. After being detained at the aforementioned precinct for several hours plaintiff was transported to Central Booking where he was searched, moved from cell to cell, and further detained.

19. In connection with plaintiffs' arrest, defendants UC # 348, TORRES, PIMENTEL, MALLON, and/or POLICE OFFICERS "JOHN DOE" #1-10 filled out false and/or misleading police reports and forwarded them to prosecutors at the Kings County District Attorney's Office. Thereafter, defendants UC # 348, TORRES, PIMENTEL, MALLON, and/or

POLICE OFFICERS “JOHN DOE” #1-10 repeated the aforementioned false and misleading information regarding the facts and circumstances of plaintiff’s arrest. Specifically, defendants UC # 348, TORRES, PIMENTEL, MALLON, and/or POLICE OFFICERS “JOHN DOE” #1-10 falsely stated, *inter alia*, that plaintiff possessed and sold a controlled substance.

20. As a result of the foregoing, plaintiff spent approximately two (2) days in custody before he was released following arraignment. Thereafter, plaintiff was maliciously prosecuted for nearly two (2) years and forced to make approximately thirteen (13) court appearances during that time, before all charges against him were dismissed in their entirety on or about November 20, 2019.

21. As a result of the foregoing, plaintiff sustained, *inter alia*, loss of liberty, physical injuries and pain to *inter alia*, his shoulder, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of their constitutional rights.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF **DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983**

22. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

23. All of the aforementioned acts of defendants, their agents, servants, and employees, were carried out under the color of state law.

24. All of the aforementioned acts deprived plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

25. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

26. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.

27. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**SECOND CLAIM FOR RELIEF ARISING
FALSE ARREST UNDER 42 U.S.C. § 1983¹**

28. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

29. As a result of the aforesaid conduct by defendants UC # 348, TORRES, PIMENTEL, MALLON, and/or POLICE OFFICERS “JOHN DOE” #1-10, plaintiff was subjected to an illegal, improper, and false arrest by the defendants UC # 348, TORRES, PIMENTEL, MALLON, and/or POLICE OFFICERS “JOHN DOE” #1-10, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

¹ Due to the fact the Statute of Limitations with respect to the filing of this claim fell during such time that said Statute of Limitations was tolled pursuant to N.Y. Executive Orders 202.8 and 202.28, et al. because of COVID-19, this claim is timely filed.

30. As a result of the foregoing, plaintiff's liberties were restricted for an extended period of time, he was put in fear for his safety, and he was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

**THIRD CLAIM FOR RELIEF ARISING
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983**

31. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

32. Defendants UC # 348, TORRES, PIMENTEL, MALLON, and/or POLICE OFFICERS "JOHN DOE" #1-10 created false evidence against the plaintiff.

33. Defendants UC # 348, TORRES, PIMENTEL, MALLON, and/or POLICE OFFICERS "JOHN DOE" #1-10 forwarded false evidence and false information to prosecutors in the Kings County District Attorney's Office – namely, the defendants falsely informed prosecutors *inter alia*, that plaintiff had engaged in a narcotics-related conversation with UC #348, that plaintiff had been involved in a drug sale, and that plaintiff was observed to be in possession of a controlled substance.

34. Defendants UC # 348, TORRES, PIMENTEL, MALLON, and/or POLICE OFFICERS "JOHN DOE" #1-10 misled the prosecutors by creating false evidence against the plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.

35. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants UC # 348, TORRES, PIMENTEL, MALLON, and/or POLICE OFFICERS "JOHN DOE" #1-10 violated plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

36. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FOURTH CLAIM FOR RELIEF
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

37. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

38. Defendants UC # 348, TORRES, PIMENTEL, MALLON, and/or POLICE OFFICERS "JOHN DOE" #1-10 misrepresented and falsified evidence before the Bronx County District Attorney.

39. Defendants UC # 348, TORRES, PIMENTEL, MALLON, and/or POLICE OFFICERS "JOHN DOE" #1-10 did not make a complete and full statement of facts to the District Attorney.

40. Defendants UC # 348, TORRES, PIMENTEL, MALLON, and/or POLICE OFFICERS "JOHN DOE" #1-10 withheld exculpatory evidence from the District Attorney.

41. Defendants UC # 348, TORRES, PIMENTEL, MALLON, and/or POLICE OFFICERS "JOHN DOE" #1-10 were directly and actively involved in the initiation of criminal proceedings against plaintiff.

42. Defendants UC # 348, TORRES, PIMENTEL, MALLON, and/or POLICE OFFICERS "JOHN DOE" #1-10 lacked probable cause to initiate criminal proceedings against plaintiff.

43. Defendants UC # 348, TORRES, PIMENTEL, MALLON, and/or POLICE OFFICERS "JOHN DOE" #1-10 acted with malice in initiating criminal proceedings against plaintiff.

44. Defendants UC # 348, TORRES, PIMENTEL, MALLON, and/or POLICE OFFICERS “JOHN DOE” #1-10 were directly and actively involved in the continuation of criminal proceedings against plaintiff.

45. Defendants UC # 348, TORRES, PIMENTEL, MALLON, and/or POLICE OFFICERS “JOHN DOE” #1-10 lacked probable cause to continue criminal proceedings against plaintiff.

46. Defendants UC # 348, TORRES, PIMENTEL, MALLON, and/or POLICE OFFICERS “JOHN DOE” #1-10 acted with malice in continuing criminal proceedings against plaintiff.

47. Defendants UC # 348, TORRES, PIMENTEL, MALLON, and/or POLICE OFFICERS “JOHN DOE” #1-10 misrepresented and falsified evidence throughout all phases of the criminal proceedings.

48. Specifically, defendants’ UC # 348, TORRES, PIMENTEL, MALLON, and/or POLICE OFFICERS “JOHN DOE” #1-10 made the aforementioned false and misleading allegations regarding the circumstances surrounding plaintiff’s arrest.

49. Notwithstanding the perjurious and fraudulent conduct of defendants UC # 348, TORRES, PIMENTEL, MALLON, and/or POLICE OFFICERS “JOHN DOE” #1-10, the criminal proceedings were terminated in plaintiff’s favor on or about November 20, 2019.

50. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FIFTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

51. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

52. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

53. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
- D. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and,
- E. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

54. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being, and constitutional rights of the plaintiffs.

55. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiffs as alleged herein.

56. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiffs as alleged herein.

57. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiffs' constitutional rights.

58. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiffs' constitutional rights.

59. The acts complained of deprived the plaintiffs of their rights:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon them; and
- D. To receive equal protection under the law.

WHEREFORE, plaintiffs respectfully request judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs, and disbursements of this action.

Dated: New York, New York
March 4, 2021

BY: _____/S_____
ILYSSA FUCHS
GERALD COHEN
JOSHUA FITCH
COHEN & FITCH LLP
Attorneys for Plaintiff
110 E. 59th St., Suite 3200
New York, N.Y. 10022
(212) 374-9115

ATTORNEY'S VERIFICATION

ILYSSA S. FUCHS, an attorney duly admitted to practice law in the Courts of the State of New York, states:

That she is a member of the law firm of COHEN & FITCH, LLP the attorneys for the plaintiff ANGEL RIVERA in the within entitled action.

That your deponent has read the foregoing **COMPLAINT** and knows the contents thereof, and that the same is true to her own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not within the county wherein deponent maintains her office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
March 4, 2021

_____/S_____
ILYSSA S. FUCHS